

**DEPARTMENT EIGHT
JUDGE WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, JULY 23, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**Wells Fargo Bank N.A. v. Gladys M. Veliz
Case No. CL24-07803**

Motion to Set Aside/Vacate Dismissal and Enter Judgment per 664.6

TENTATIVE RULING:

Plaintiff moves to set aside the dismissal of this action and for entry of judgment pursuant to a stipulation.

Plaintiff's motion is DENIED WITHOUT PREJUDICE.

Defendant's first appearance in this action was when Plaintiff caused the filing of a stipulation and paid Defendant's first appearance fee. Defendant has never formally appeared in this action and the stipulation itself fails to state an appearance. The court has no ability to determine whether the mailed notice was adequate to provide Defendant with due process.

A confession of judgment without notice and opportunity to be heard violates due process. (See *Isbell v. County of Sonoma* (1978) 21 Cal.3d 61.)

Reflecting due process concerns, service of a motion affecting the rights of a defendant who has not appeared in an action typically is required to be made in the same manner as required for service of summons and complaint. (See, e.g., applications for writs of attachment [Code Civ. Proc., § 482.070, subd. (d)]; applications for writs of possession [Code Civ. Proc., § 512.030, subd. (b)].)

CITIBANK N.A. v. MARICRUZ MURILLO GASCA
Case No. CL25-09082

Motion to Deem Matters Admitted

TENTATIVE RULING:

Plaintiff's unopposed Motion to Deem Matters Admitted by Defendant MARICRUZ MURILLO GASCA ("Defendant") is GRANTED. Defendant shall be deemed to have admitted all propounded Requests for Admission (Set One).

The proposed order lodged with the court will be processed forthwith.

CITY OF BENICIA v. REAVIS
Case No. CU26-04514

Petition/Motion for Appointment of Receiver

TENTATIVE RULING:

Parties, interested persons and proposed Receiver to appear.

If a title owner of property fails to effect cleanup/repairs within a reasonable period of time after service of the notice specified in Health & Safety Code §17980.6, Health & Safety Code §17980.7(c) authorizes the public entity to petition the court for appointment of a receiver.

After CITY's filing of the petition/motion for appointment of receiver on May 7, 2026, Defendant R. JUDITH REAVIS filed an answer. In this answer, she claimed to have already effected roofing repairs, and to be awaiting CITY's approval of a renovation permit for other repairs. However, CITY's June motion claims REAVIS has had multiple opportunities to take action and has failed to do so since 2018 when they first began noticing her of the code enforcement issues.

There is not yet any proof of service for the answer so the court is uncertain whether it was served on CITY.

Parties are to appear so that the court can inquire as to whether CITY is aware of and can confirm these recent claimed repairs and repair efforts and whether there is still a need for appointment of a receiver.

The court urges REAVIS to seek legal counsel if she is able.

MCNAMARA v. REVEILLE FARMS, ET AL.
Case No. CU24-02198

Trial Management Conference

TENTATIVE RULING:

Parties to appear.

On July 21, 2026, the court granted the summary judgment motion of Defendants REVEILLE and GILL.

The court understood that after the second ruling on the motion to deem matters admitted as to Defendant MATHIES that Plaintiff intended to dismiss the action as to MATHIES. That ruling was issued on July 2, 2026. MATHIES has not yet been dismissed.

Anticipating that Plaintiff still intends to dismiss MATHIES, the court declines to issue a tentative ruling as to any trial management issues pending confirmation that the trial is proceeding as to the remaining Defendant.

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645
Passcode: 675002